



Liability for Omissions

An introductory guide to negligence in England and Wales. It develops the uploaded lesson and checks the case results against the judgments.

1. What is an omission?

An **omission** is a failure to do something: for example, not warning someone or not supervising a person. An **act** is something done: for example, spilling oil on a path. The law asks whether a defendant made someone worse off or merely failed to protect them from a danger that arose independently. [1]

Starting rule: A person is generally required to take reasonable care not to cause foreseeable harm through their own conduct. There is generally no duty to protect everyone against dangers created by somebody else or by nature. A special relationship or other recognised reason may establish a duty to act. [1]

Invented example: You see a stranger fall into a canal. English negligence law generally does not turn every passer-by into a legal rescuer. If you are responsible for supervising a young child beside the water, or undertake the child's rescue in circumstances that create reliance, the legal relationship may be different. Moral concern and legal duty are distinct questions.

2. Start with the source of danger

Ask: Who created the risk? Who controlled it? Did the defendant undertake to protect this claimant? Did an intervention stop another person from helping? These are ways to identify a duty in a situation that looks like “doing nothing”. They are not automatic boxes that establish liability. [1]

3. Even a duty is only the beginning

The claimant must still show **breach** (failure to take reasonable care), **causation** (the failure caused the harm), and legally recoverable **damage**. A **third party** is someone outside the claimant-defendant relationship, such as the thief in the bus case below.

Claimant: person bringing the case. **Defendant:** person or body sued. **Damages:** money awarded for loss. “No duty” means a negligence claim fails before the court needs to decide all later elements.



Taking charge of someone: Barrett

4. Assumption of responsibility

An **assumption of responsibility** can arise when a defendant takes charge of protecting someone from a particular danger. It matters what care the defendant actually undertook, when this happened, and whether the later failure falls within that undertaking. Merely being nearby or having a job title is insufficient by itself. [1, 2]

Barrett v Ministry of Defence [1995] 1 WLR 1217 [2]

Mr Barrett, a naval serviceman, drank heavily at a naval base and became unconscious. A duty officer arranged for him to be taken to his cabin and placed in a recovery position. He was then left without adequate supervision and later died after inhaling vomit. His widow brought the negligence claim.

The Court of Appeal separated two periods. **Before he collapsed:** the Ministry of Defence did not owe a common-law duty to stop him drinking to excess. **Once officers took charge of him:** they owed reasonable care for his safety, and their inadequate response to the known danger was negligent.

Who won, and why? Mrs Barrett succeeded in establishing liability for the inadequate care after her husband collapsed. The Ministry of Defence won part of its appeal: there was no general duty to prevent his excessive drinking, and his own responsibility for it meant that damages were reduced by two thirds for **contributory negligence**. The result was a reduced award, not complete success for either side.

5. What is contributory negligence?

This means the injured person's own lack of care contributed to the harm. It can reduce compensation without erasing the defendant's liability. In Barrett, the finding concerned Mr Barrett's drinking. It does not mean that the duty officer's later failure became acceptable.

Invented comparison: A sports organiser notices that a participant is unconscious, arranges to move her to a quiet room, and promises another organiser to watch her while help arrives. Leaving her entirely alone raises a different question from failing to stop every participant drinking beforehand. The exact undertaking and what reasonable care required still need proof.

Reading tip: "Assumed responsibility" describes conduct and a legal relationship; it is not simply a signed agreement or a spoken promise. An undertaking may be inferred from what people did.



A danger and a third party: Topp and Tindall

6. Creating or making a danger worse

If your own activity creates an unreasonable risk, failing to take a precaution within that activity is not necessarily a “pure omission”. For example, a person who parks a car and forgets the handbrake has created a danger by the whole act of parking. The modern court asks what would have happened if that person had never engaged in the activity. [1]

A genuinely independent danger is different. Merely having had a chance to prevent somebody else's harmful act does not always mean that you created that person's risk. Consider the defendant's conduct and the relevant relationship.

Topp v London Country Bus (South West) Ltd [1993] 1 WLR 976 [3]

A minibus was left unlocked with its key in the ignition and remained unattended. An unknown thief took it and later struck and killed Mrs Topp, who was cycling. Her husband sued the bus company. The case did not establish that every careless failure to secure property creates a duty to everyone injured by a thief.

Who won, and why? The bus company won; the Court of Appeal upheld the dismissal of Mr Topp's claim. On these facts, no duty of care to Mrs Topp was established to guard against the thief's driving. The thief's separate act was central to the analysis. The case is a limit, not an example of successful liability for creating danger.

Tindall v Chief Constable of Thames Valley Police [2024] UKSC 33 [1]

After one driver skidded on black ice, police attended, cleared debris, and left without dealing with the ice. A later collision killed Mr Tindall and another driver. Mrs Tindall argued that the police had made things worse or had assumed responsibility, controlled the danger, or prevented the first driver from warning traffic.

Who won, and why? The Chief Constable won; the Supreme Court dismissed Mrs Tindall's appeal. On the facts assumed for the preliminary claim, the police had not made matters worse in the legally relevant sense; nor had they assumed responsibility to other road users or taken control of the black ice. They did not know, and could not reasonably be expected to know, that their intervention would stop the earlier driver's warnings.

Important distinction: Tindall accepts that interfering with another person's foreseeable rescue or warning efforts can create a duty. Mrs Tindall lost because the necessary knowledge or foreseeability was missing on her pleaded facts. [1]



Control of someone: Carmarthenshire

7. A special level of control

A person or institution with a particular responsibility to control a source of danger may owe care to people foreseeably harmed if control is lost. This is more specific than saying that everyone must stop all harm by others. Control of very young children in a school is one example. [1]

Carmarthenshire County Council v Lewis [1955] AC 549 [1, 4]

A child aged almost four got out of a nursery school and ran onto the road. A lorry driver swerved to avoid him, hit a post and died. His widow sued the county council, which ran the school.

The council had responsibility for the children in its care. A young child reaching the road could foreseeably endanger a driver. The school premises and gate were not kept sufficiently secure. **The individual teacher was not found negligent**; the council's responsibility was not simply a finding that a teacher had failed to watch for a moment. [4]

Who won, and why? Mrs Lewis, the driver's widow, won; the House of Lords dismissed the council's appeal. The council owed care to road users affected by a child escaping from its nursery, and its failure to keep the child from reaching the road supported liability. The teacher herself was not found negligent.

8. Compare the three lessons

Barrett: officers took charge of a person already in danger.

Topp: an independent thief drove the bus; the claimant did not establish the asserted duty against the bus company.

Carmarthenshire: a school authority had responsibility and control over a young child who escaped onto a road.

Tindall: attending a first accident did not itself mean the police controlled the black ice or owed the later motorists the asserted duty.

These cases show why “the defendant failed to act” is not a complete legal answer. Ask what danger arose, who had responsibility for it, and what was reasonably foreseeable. Then test breach, causation and damage. [1]



Check your understanding

1. Does negligence law generally make every passer-by liable for not rescuing a stranger?

Answer: No. A general duty to protect strangers from independently arising dangers is usually absent; a specific recognised relationship or other basis can change the answer.

2. What changes when an officer takes charge of an unconscious person?

Answer: An undertaking to care for that person may create a duty to take reasonable care against the danger addressed by the undertaking.

3. Who won *Barrett*, and was the award unreduced?

Answer: Mrs Barrett established liability for the inadequate care after collapse. The Ministry succeeded in rejecting a general duty to prevent drinking; damages were reduced by two thirds for contributory negligence.

4. Why did Mr Topp not win against the bus company?

Answer: The asserted duty to protect Mrs Topp from an independent thief's driving was not established on the facts, even though the bus had been left unlocked with its key.

5. Did the police win *Tindall* because interference with another's warning can never create a duty?

Answer: No. The court recognised that possibility, but the police did not know or reasonably have to know that they were stopping the earlier driver's warnings.

6. Who won *Carmarthenshire*, and was the teacher found negligent?

Answer: The driver's widow won against the council. The individual teacher was not found negligent; the authority's failure concerning the child and the school premises supported liability.

7. Does identifying a duty of care automatically establish the amount of compensation?

Answer: No. The claimant still needs breach, causation, recoverable damage and evidence of the amount; contributory negligence may reduce the award.

Judgments and reading notes

Primary judgments checked 4 October 2026. The canal and sports examples are invented.

[1] *Tindall* [2024] UKSC 33. Official UK Supreme Court judgment: paras 20-44 (general rule), 48-70 (interference), 74-87 (assumption and control), 80 (Lewis). [Read source](#)

[2] *Barrett* [1994] EWCA Civ 7; [1995] 1 WLR 1217. Court of Appeal judgment; the facts and result are also recorded in the European Court of Human Rights decision *Barrett v United Kingdom*, application 24851/94. [Read source](#)

[3] *Topp* [1993] EWCA Civ 15; [1993] 1 WLR 976. Court of Appeal judgment reproduction, including its dismissal of the claim. [Read source](#)

[4] *Carmarthenshire* [1955] AC 549. House of Lords judgment reproduced by LawCare Nigeria; read the distinction between teacher and authority. [Read source](#)